Dated 28 July 2008

THE GOVERNOR AND COMPANY OF THE BANK OF ENGLAND

AND

THE LAWN TENNIS ASSOCIATION

CAR PARKING LICENCE

relating to land known as Bank of England Sports Centre Roehampton London

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SpeechlyBircham

CAR PARKING LICENCE

PARTICULARS

DATE 28 July 2008

1. **Licensor: THE GOVERNOR AND COMPANY OF THE BANK OF ENGLAND** of Threadneedle Street London EC2R 8AH

2. **Licensee: THE LAWN TENNIS ASSOCIATION** of 100 Priory Lane Roehampton London SW15 5JQ

3. **Estate:** the land comprised in the Licensor's registered title numbers 239100 and 139884

4. **Car Parking Spaces:** the 30 spaces shown coloured red on the Plan or such other equivalent spaces within the Car Parking Area from time to time designated by the Licensor (in its absolute discretion) and notified in writing to the Licensee

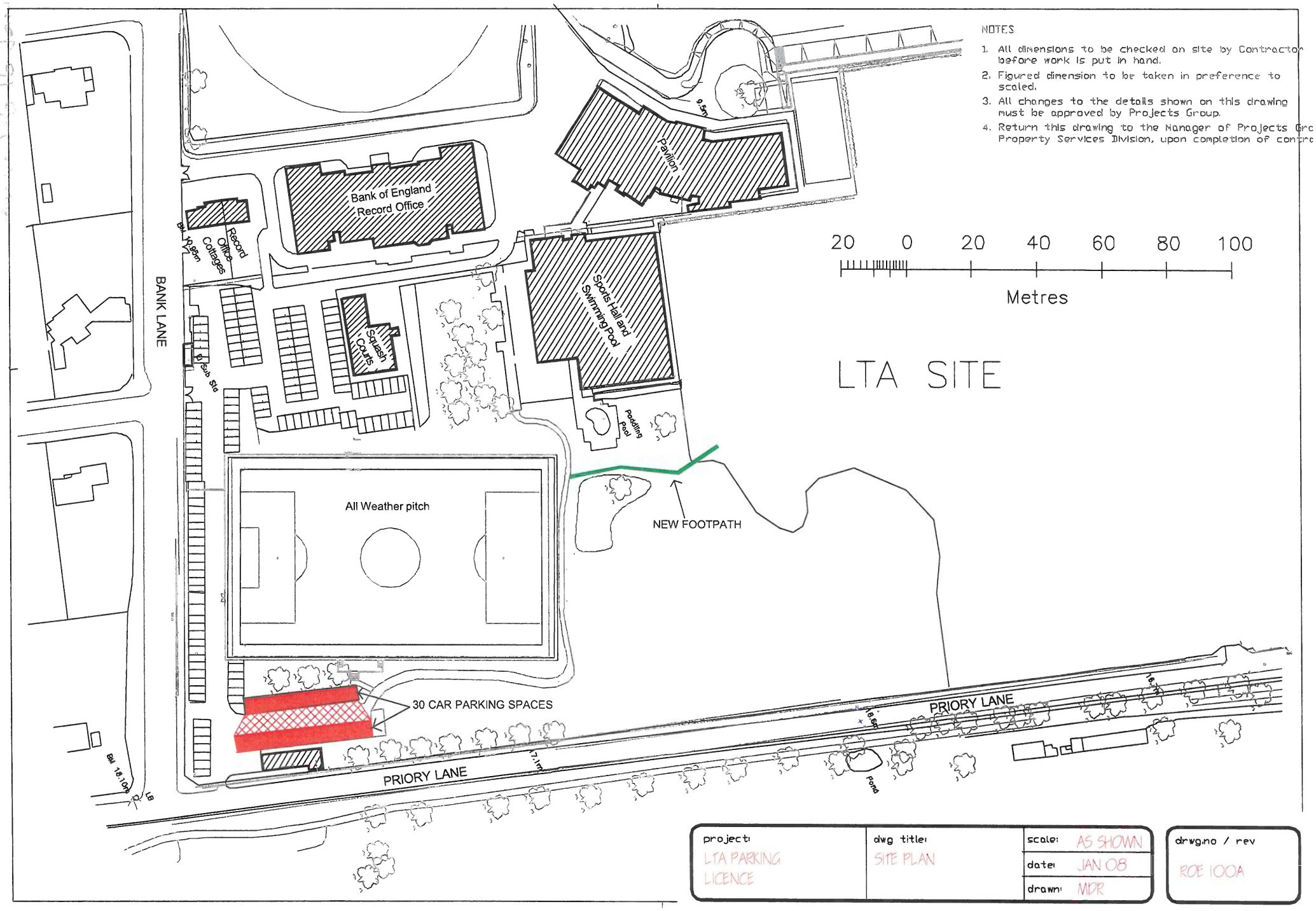
5. **Car Parking Area:** such area within the Estate as the Licensor may in its discretion from time to time designate and notify to the Licensee

6. **Licensee's Land:** the land comprised in the Licensee's registered title number TGL239081

7. **Licence Fee: £18,000** per annum (exclusive of VAT) subject to review on the Date of Increase in accordance with Schedule 2

8. **Quarter Day:** 5 October, 4 January, 4 April and 4 July

9. **Requisite Notice:** a notice in writing given by one party to the other containing not less than two calendar months' notice of its intention to terminate this Licence (such notice not to be served before 1 August 2008)


NOTES
1. All dimensions to be checked on site by Contractor before work is put in hand.
2. Figured dimension to be taken in preference to scaled.
3. All changes to the details shown on this drawing must be approved by Projects Group.
4. Return this drawing to the Manager of Projects Grc Property Services Division, upon completion of contrc
20 0 20 40 60 80 100
Metres
LTA SITE
Bank of England Record Office
Record Office Cottages
Pavilion
Sports Hall and Swimming Pool
Squash Courts
Paddling Pool
All Weather pitch
NEW FOOTPATH
30 CAR PARKING SPACES
BANK LANE
PRIORY LANE
PRIORY LANE
Pond
project: LTA PARKING LICENCE
dwg title: SITE PLAN
scale: AS SHOWN
date: JAN 08
drawn: MDR
drwg.no / rev ROE 100A

CAR PARKING LICENCE

THIS LICENCE is made on the date set out in the Particulars

BETWEEN

(1) The Licensor

(2) The Licensee

IT IS AGREED as follows:

1. INTERPRETATION

In this Licence save where the context otherwise requires:

1.1 words importing the masculine gender only shall include the feminine gender and vice versa

1.2 words importing persons shall include firms companies and corporations and vice versa

1.3 words importing the singular number shall include the plural number and vice versa and where the Licensee consists of two or more persons all covenants by the Licensee shall be deemed to be made by such persons jointly and severally

1.4 references (if any) in this Licence to any statute rule or order shall be deemed to include every statutory amendment re-enactment or replacement therefor for the time being in force and every statutory instrument rule order notice regulation and direction for the time being made issued or given thereunder or deriving validly therefrom and from time to time thereunder

1.5 the headings in this Licence shall not affect its interpretation or construction

2. DEFINITIONS

The following expressions shall have the following meanings:

2.1 For all purposes of this Licence the terms defined in the Particulars and in this clause have the meanings specified

2.2 **Base Figure** means the RPI figure of 208.9

2.3 **Consents** means all permissions consents licences certificates and approvals under the Planning Acts or any other public or local statute or any by-laws of any competent authority

2.4 **Date of Increase** means 5 October 2008 and each anniversary thereof

2.5 **Footpath** means such part of the footpath shown coloured green on the Plan as is located on the Estate

2.6 **Particulars** means the particulars affixed hereto

2.7 **Licensor** means the party set out in the Particulars and its successors in title

2.8 **Overspill Area** means the part of the Car Parking Area shown cross hatched red on the Plan

2.9 **Licensee** means only the Licensee named in the Particulars

2.10 **Plan** means the plan or plans attached hereto

2.11 **Planning Acts** means "the consolidating Acts" as defined in the Planning (Consequential Provisions) Act 1990 and any other legislation relating to town and country planning in force from time to time

2.12 **Retail Price Index** means the "all items" Central Index of Retail Prices published by the Central Statistics Office or any official successor body

2.13 **Schedule** means the Schedule attached hereto

2.14 **Working Day** means any day which is not a Saturday or Sunday

2.15 **Licensee's Works** means the installation of low level lighting along the Footpath

3. GRANT OF LICENCE

The Licensor hereby grants leave and licence to the Licensee for a period commencing on and including 5 October 2007 until this Licence is determined in the manner hereinafter mentioned:

3.1 To use each of the Car Parking Spaces for the parking of one private motor car or mini bus (the **vehicle**) on any Working Day

3.2 (Subject to first obtaining the written approval of the Licensor on each occasion) to park an appropriate number of vehicles on the Overspill Area provided that the Licensee shall only seek to use such Overspill Area on an intermittent basis and where such use is reasonably necessary

3.3 For the purpose of access to and egress from each of the Car Parking Spaces and/or the Overspill Area in connection with parking the vehicle therein to pass with or without the vehicle over the remainder of the Car Parking Area and over such access road(s) over the Estate as the Licensor may designate for the purpose only of access to and egress from the public highway

3.4 For the purpose of access to and egress from the Car Parking Spaces and/or the Overspill Area (from and to the Licensee's Land) to pass on foot only over Footpath

4. LICENSEE'S OBLIGATIONS

The Licensee hereby agrees with the Licensor:

4.1 To pay to the Licensor in advance by quarterly instalments on each Quarter Day the Licence Fee

4.2 To pay to the Licensor such amounts of value added tax at the rate from time to time in force as shall be legally payable in respect of the Licence Fee and any other payments under this Licence and all amounts that the Licensee covenants to pay under this Licence shall be regarded as exclusive of all value added tax which may be payable thereon

4.3 That if the Licensee shall fail to pay any sums due under this Licence within ten working days of the due date then it shall pay to the Licensor interest on such sum from the due date to the date on which the sum is paid at 3% per annum above the base lending rate of The Royal Bank of Scotland plc from time to time

The Licensor shall use reasonable endeavours to send (not less than 30 days before the relevant Quarter Day) the Licensee an invoice for the Licence Fee due on each Quarter Day but the Licensee shall be obliged to pay the Licence Fee as aforementioned whether or not such invoice is sent

4.4 To observe and perform the stipulations set out in Schedule 1 hereto and any reasonable supplemental stipulations that the Licensor may notify to the Licensee in writing

4.5 To comply with all statutes relating to the use occupation and safety of the Car Parking Spaces and the Overspill Area

4.6 Not to apply for any planning permission in respect of the Car Parking Area or the Estate

4.7 To take out and maintain (at its own expense) public liability insurance in respect of the Car Parking Area and the Footpath and to produce evidence of such insurance to the Licensor on demand

5. LICENSOR'S OBLIGATIONS

The Licensor agrees with the Licensee to give the Licensee not less than seven days prior notice of its intention to change the designated Car Parking Spaces

6. TERMINATION

6.1 This Licence may be terminated by either party giving to the other Requisite Notice (subject always to the provisions of sub-clauses 6.2 and 6.3 of this clause). If the Licensor so terminates this Licence, the Licensor shall repay the Licensee, on a pro rata basis, any amount of the Licence Fee (not exceeding £1,500 (plus VAT)) which

has been paid under clause 4.1 but for which as a consequence of such termination the Licensor will not benefit from the rights set out in clause 3

6.2 The Licensor may terminate this Licence forthwith without notice at any time if:

6.2.1 any sum hereby agreed to be paid being in arrear or unpaid (whether or not requested by the Licensor) for fifteen days after the date of payment hereunder or

6.2.2 if the Licensee shall at any time commit any material breach of the terms hereof and fails to remedy such breach within fourteen days of written notification of the breach

6.3 Any termination of this Licence shall be without prejudice to any claim by the Licensor in respect of any antecedent breach of the provisions of this Licence

7. LEAVING ON DETERMINATION OR EXPIRY

On the termination of this Licence for any reason whatsoever the Licensee shall leave the Car Parking Spaces and the Overspill Area in a clean state and not allow any other person firm or company to use the same.

8. NON-ASSIGNABILITY

This Licence is personal to the Licensee who may not transfer or assign the benefit thereof and may not sub-licence the Car Parking Spaces (or the Overspill Area) nor share the same with any other person firm or company.

9. INDEMNITY

The Licensee covenants to keep the Licensor indemnified against all proper claims demands actions or proceedings made or brought and all proper losses damages costs expenses and liabilities incurred suffered or arising directly or indirectly in respect of or otherwise connected with:

9.1 any act omission or negligence of the Licensee or any other person at the Car Parking Area with the express or implied authority of the Licensee

9.2 any failure by the Licensee to comply with its obligations in this Licence

9.3 the use of the Car Parking Spaces and the Overspill Area or the exercising of any of the rights under this Licence by the Licensee or any other person with the express or implied authority of it

provided that the provisions of this clause 9 (and all of the provisions in this Licence whereby the Licensee covenants to indemnify the Licensor) shall apply subject to the following:

9.3.1 the Licensor mitigating its loss

9.3.2 before claiming against the Licensee under this clause 9 the Licensor shall (if applicable) serve a notice on the Licensee specifying the breach and giving the Licensee a reasonable period in which to remedy it

10. POSSESSION

The Licensor shall retain possession of the Car Parking Area and shall have the right at all times to enter the Car Parking Area and this Licence shall not operate or be deemed to operate as a demise of the Car Parking Area nor shall the Licensee have or be entitled to any estate right title or interest in the Car Parking Area otherwise than under this Licence

11. USE AT LICENSEE'S RISK

11.1 The Licensee shall use the Car Parking Area and otherwise exercise its rights under this Agreement entirely at its own risk and (without limitation to the foregoing) the Licensor accepts no liability for damage to vehicles parked or items stored on the Car Parking Area or injury to the Licensee the Licensee's employees or invitees howsoever caused

11.2 Nothing in this Licence implies or is to be treated as a warranty to the effect that the use of the Car Parking Spaces or the Overspill Area is in compliance with the Planning Acts and all other statutes and regulations relating to town and country planning from time to time in force

11.3 Nothing in this Licence shall serve to limit either party's liability in respect of death or personal injury caused or arising from that party's negligence or for any liability which cannot by law be limited

12. LICENSEE'S WORKS

12.1 Nothing in this Licence places the Licensee under an obligation to the Licensor to carry out the Licensee's Works but if it does carry them out it must do so in accordance with this clause 12

12.2 The Licensee shall not start the Licensee's Works until:

12.2.1 it has supplied specifications and plans of the Licensee's Works to the Licensor (and such other details as the Licensor reasonably requests) and the Licensor has given its consent in writing to the Licensee's Works (such consent not to be unreasonably withheld or delayed)

12.2.2 it has obtained at its own expense the Consents (if any) necessary for the Licensee's Works and produced them to the Licensor

12.3 The Licensee shall carry out and complete the Licensee's Works:

12.3.1 using good quality materials which are fit for the purpose for which they will be used

12.3.2 in a good and workmanlike manner and to the reasonable satisfaction of the Licensor

12.3.3 in accordance with the Consents and to the satisfaction of all competent authorities

12.3.4 in accordance with the requirements of the insurers of the Estate

12.3.5 with all reasonable speed

12.4 During the execution of the Licensee's Works the Licensee shall:

12.4.1 ensure that its contractors hold third party liability insurance for an amount that is appropriate to the nature and extent of the Licensee's Works

12.4.2 cause as little disturbance and inconvenience as reasonably possible to the Licensor and the owners and occupiers of any nearby or neighbouring land or premises

12.5 On completion of the Licensee's Works the Licensee shall:

12.5.1 remove all debris emanating from and equipment used in connection with the Licensee's Works

12.5.2 make good to the reasonable satisfaction of the Licensor any damage caused to the Estate caused by the carrying out of the Licensee's Works

12.5.3 until the expiry or sooner determination of this Licence repair and maintain the Licensee's Works and bear all costs and charges incurred in connection with the use and operation of them

12.6 The Licensee shall indemnify the Licensor against all breaches of the provisions of this clause 12 and all losses arising out of the carrying out and retention of the Licensee's Works

13. NOTICES

13.1 Any notice required to be given under this Licence shall be in writing and shall be delivered personally or sent by pre-paid first-class post or recorded delivery or by commercial courier to the respective address of the parties set out in the particulars

13.2 Any notice shall be deemed to have been duly received:

13.2.1 if delivered personally when left at the address referred to in this clause; or

13.2.2 if sent by pre-paid first-class post or recorded delivery at 9.00 am on the second working day after posting; or

13.2.3 if delivered by commercial courier on the date and at the time that the courier's delivery receipt is signed

13.3 A notice under this Licence can be validly given if sent by email provided that any notice served on the Licensor by email is to be sent to steve.mallinder@bankofengland.co.uk

13.4 An automated response to a notice or document sent by email that the intended recipient is out of the office is to be treated as proof that the notice or document was not received

14. RIGHTS OF THIRD PARTIES

A person who is not a party to this Licence shall have no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any of its terms

15. DELIVERY

The provisions of this Licence (other than those contained in this clause) shall have no effect until this Licence has been dated

Schedule 1

1. To use each Car Parking Space and not to permit the same to be used other than for the parking of one private motor vehicle belonging to the Licensee or the Licensee's visitors and for no other purpose whatsoever

2. Not to do anything in or on the Car Parking Spaces or within the Estate or make a noise which may be of nuisance or annoyance to the Licensor or to any other licensee owners or occupiers of other car parking spaces or properties in the Estate and in particular not to cause any obstruction to other vehicles using the Car Parking Area

3. To keep the Car Parking Spaces and the Overspill Area clean and tidy and not to carry out any repairs to any vehicle (other than running repairs) in the Car Parking Spaces (or the Overspill Area) nor to run the engine of the vehicle whilst the same is in a Car Parking Space except so far as may be necessary for entering or leaving the same

4. No boat coach caravan van lorry or anything other than a vehicle (hereinbefore defined) shall be parked or permitted to remain on any part of the Estate (including the Car Parking Spaces and the Overspill Area)

5. Not to erect or display any signs hoardings or advertisements in the Car Parking Area

6. Not to make any alterations or additions whatsoever to the Car Parking Spaces or the Overspill Area

7. To comply with the Licensor's security requirements in relation to the access to and use of the Car Parking Spaces and the Overspill Area

8. Not to use the Car Parking Spaces (or the Overspill Area) or exercise the rights under this Licence on any day that is not a Working Day

9. The Licensee shall issue LTA parking permits to all persons permitted by it to use the Car Parking Spaces pursuant to this Licence and the Licensee shall procure that all such persons shall at all times display the permits in their vehicles

Schedule 2

(Review of Licence Fee)

1. With effect from the Date of Increase the Licence Fee shall be the greater of:

1.1 an amount equal to the sum obtained by multiplying the Licence Fee by the Retail Price Index for the month of July that is immediately prior to the Date of Increase (or for the preceding month of June if the figure for July is unavailable at the time of calculating the revised Licence Fee) and dividing the product by the Base Figure and

1.2 the Licence Fee stated in the Particulars

2. The Licensor shall use reasonable endeavours to give written notice to the Licensee of the amount of the Licence Fee determined pursuant to the provisions of paragraph 1 of this Schedule not less than two months prior to the Date of Increase provided that failure by the Licensor to give such notice shall not in any way lessen or reduce the Licensee's liability to pay for the revised Licence Fee from the Date of Increase

3. A memorandum of the Licence Fee ascertained in accordance with this Schedule shall be signed by or on behalf of the Licensor and the Licensee and shall be binding on the parties

4. Time shall not be of the essence in respect of this Schedule

Signed by [ ])

on behalf of the Licensee)

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Duly authorised